

THE KING'S BENCH (FAMILY DIVISION)
_____ **Centre**

BETWEEN:

Petitioner/Applicant

- and -

Respondent

-
-

FOAEAA ORDER - AUTHORIZATION
Financial

Pursuant to section 10 of the *Family Orders and Agreements Enforcement Assistance Act* (Canada) authorizing a court official to request information for the **establishment or variation of a support order**

(name, address, e-mail, and telephone number of party filing)

THE KING'S BENCH (Family Division)

Centre

THE HONOURABLE)
) , the day of , 20__
)

BETWEEN:

Petitioner/Applicant

– and –

Respondent

ORDER

- 1.0** This matter having proceeded at the Law Courts Complex, 408 York Avenue, Winnipeg, Manitoba, R3C 0P9, at the request of the _____.
(party)
- 2.0** On the application of _____ made pursuant to
(Full name of party making the application)
section 7 of the *Family Orders and Agreements Enforcement Assistance Act* (Canada), in relation to the (establishment of a support order/variation of the support provision set out in the order pronounced _____

(specify date)
by _____).
(specify Judge, Court, and province/territory/country)
- 3.0** THIS COURT is satisfied that the sole purpose of the application is to obtain information to (establish/vary) a support order and the order is not likely to jeopardize the safety or security of any person.
- 4.0** THIS COURT ORDERS pursuant to section 10 of the *Family Orders and Agreements Enforcement Assistance Act* (Canada) that the Registrar of the Court

of King's Bench of Manitoba is authorized to make an application to the Minister of Justice Canada pursuant to section 12 of the Family Orders and Agreements Enforcement Assistance Act (Canada) to search for and release only the following information below that can be found in federal information banks designated under section 2 of the Release of Information for Family Orders and Agreements Enforcement Assistance Regulations, SOR/2023-125:

- (i) The information that is set out in the federal tax form(s) checked below related to _____
(Name of person, date of birth, and SIN (if known) against whom a support order is sought or is to be varied)

for the following taxation year(s) unless otherwise specified beside the specific form: _____

(Insert for which specific taxation year(s) the information is requested)

Federal Tax Form(s)	Year(s) requested (if different than above)
Basic income information	
☐ Income Tax and Benefits Return (T1)	
☐ Schedule 1 – Federal Tax	
☐ Schedule 2 – Federal Amounts Transferred from your Spouse or Common-Law Partner	
☐ Schedule 3 – Capital Gains (or Losses)	
☐ Schedule 4 – Statement of Investment Income	
☐ Schedule 5 – Amounts for Spouse or Common-Law Partner and Dependents	
☐ Schedule 6 – Canada Workers Benefit	
☐ Schedule 7 – RRSP, PRPP, and SPP Unused Contributions, Transfers, and HBP or LLP Activities	
☐ Schedule 8 – Canada Pension Plan Contributions and Overpayment	
☐ Schedule 9 – Donations and Gifts	
☐ Schedule 10 – Employment Insurance (EI) and Provincial Parental Insurance Plan (PPIP) Premiums	
☐ Schedule 11 – Federal Tuition, Education, and Textbook Amounts and Canada Training Credit	
☐ Schedule 12 – Home Expense Accessibility	
☐ Schedule 13 – Employment Insurance Premiums on Self-Employment and Other Eligible Earnings	
For non-resident and deemed residents:	
☐ Schedule A – Statement of World Income (for Non-Residents and	

Deemed Residents of Canada)	
☐ Schedule B – Allowable Amount of Non-Refundable Tax Credits (for Non-Residents of Canada)	
☐ Schedule C – Electing Under Section 217 of the Income Tax Act (for Non-Residents of Canada)	
☐ Notice of Assessment and Notice of Reassessment	
☐ Statement of Trust Income Allocations and Designations (T3)	
☐ Statement of Remuneration Paid (T4)	
☐ Statement of Pension, Retirement, Annuity, and Other Income (T4A)	
☐ Statement of Old Age Security (T4A (OAS))	
☐ Statement of Canada Pension Plan Benefits (T4A(P))	
☐ Statement of Employment Insurance and Other Benefits (T4E) or Statement of Employment Insurance and Other Benefits (Quebec) (T4EQ)	
☐ Statement of Income from a Registered Retirement Income Fund (T4RIF)	
☐ Statement of RRSP Income (T4RSP)	
☐ Statement of Investment Income (T5)	
☐ Government Service Contract Payments (T1204)	
☐ Statement of Benefits (T5007)	
☐ Statement of Securities Transactions (T5008)	
☐ Statement of Partnership Income (T5013)	
☐ Statement of Contract Payments (T5018)	

(Strike out paragraph (ii) if not applicable)

- (ii) For the purpose of the determination of a household's income in accordance with the applicable Child Support Guidelines, the information that is set out in the federal tax form(s) specified in the attached annex(es) A related to the person(s) identified below:

(Name of the person, date of birth, and SIN (if known))

(Name of the person, date of birth, and SIN (if known))

(Name of the person, date of birth, and SIN (if known))

(Name of the person, date of birth, and SIN (if known))

- (iii) The information that is set out in the federal tax form(s) specified in the attached annex(es) B related to the corporation(s) identified below:

(Name and business number (if known) of the corporation)

(Name and business number (if known) of the corporation)

(Name and business number (if known) of the corporation)

(Name and business number (if known) of the corporation)

5.0 THIS COURT ORDERS pursuant to subsection 13(2) of the *Family Orders and Agreements Enforcement Assistance Act* (Canada) that the information received by the Registrar of the Court of King's Bench of Manitoba from the Minister of Justice Canada and given to the court shall be sealed until further order of the court.

6.0 THIS COURT ORDERS that the issue of disclosure of the information is adjourned pending receipt of the information by the court.

(Strike out paragraph 7 if not applicable)

7.0 THIS COURT ORDERS pursuant to *The Court of King's Bench Act* and Rules that a copy of this Order shall be served on the Respondent by regular letter mail, courier or fax addressed to {specify name, additional details and/or address in full}, within 20 days of the date of signing.

(Date of signature)

(Signature of judge)

ANNEX A

(A separate Annex A is required for each person whose information is sought)

Order made under section 10 of the *Family Orders and Agreements Enforcement Assistance Act* authorizing a court official to request information for the establishment or variation of a support order

Information requested to determine household income in accordance with

(Insert name of applicable legislation)

In relation to the application of _____ made pursuant
(Full name, date of birth, and SIN (if known) of party making the application)

to section 7 of the *Family Orders and Agreements Enforcement Assistance Act*, for the purpose of _____ a support order.
(establishing or varying)

_____ can request information related to
(Name / Title of the official of the court)

_____ that is set out in in the following
(Name of person whose information is sought)

federal tax forms and that can be found in federal information banks prescribed in section 3 of the *Release of Information for Family Orders and Agreements Enforcement Assistance Regulations*, SOR/2023-125.

☐ The information that is set out in the federal tax form(s) checked below is requested for the following taxation year(s) unless otherwise specified beside the specific form:

(Insert for which specific taxation year(s) the information is requested)

Federal Tax Form(s)	Year(s) requested (if different than above)
Basic income information	
☐ Income Tax and Benefits Return (T1)	
☐ Schedule 1 – Federal Tax	
☐ Schedule 2 – Federal Amounts Transferred from your spouse or Common-Law Partner	
☐ Schedule 3 – Capital Gains (or Losses)	
☐ Schedule 4 – Statement of Investment Income	
☐ Schedule 5 – Amounts for Spouse or Common-Law Partner and Dependents	
☐ Schedule 6 – Canada Workers Benefit	
☐ Schedule 7 – RRSP, PRPP, and SPP Unused Contributions,	

Transfers, and HBP or LLP Activities	
☐ Schedule 8 – Canada Pension Plan Contributions and Overpayment	
☐ Schedule 9 – Donations and Gifts	
☐ Schedule 10 – Employment Insurance (EI) and Provincial Parental Insurance Plan (PPIP) Premiums	
☐ Schedule 11 – Federal Tuition, Education, and Textbook Amounts and Canada Training Credit	
☐ Schedule 12 – Home Expense Accessibility	
☐ Schedule 13 – Employment Insurance Premiums on Self-Employment and Other Eligible Earnings	
☐ Schedule 14 – Climate Action Incentive	
For non-resident and deemed residents:	
☐ Schedule A – Statement of World Income (for Non-Residents and Deemed Residents of Canada)	
☐ Schedule B – Allowable Amount of Non-Refundable Tax Credits (for Non-Residents of Canada)	
☐ Schedule C – Electing Under Section 217 of the Income Tax Act (for Non-Residents of Canada)	
☐ Notice of Assessment and Notice of Reassessment	
☐ Statement of Trust Income Allocations and Designations (T3)	
☐ Statement of Remuneration Paid (T4)	
☐ Statement of Pension, Retirement, Annuity, and Other Income (T4A)	
☐ Statement of Old Age Security (T4A (OAS))	
☐ Statement of Canada Pension Plan Benefits (T4A(P))	
☐ Statement of Employment Insurance and Other Benefits (T4E) or Statement of Employment Insurance and Other Benefits (Quebec) (T4EQ)	
☐ Statement of Income from a Registered Retirement Income Fund (T4RIF)	
☐ Statement of RRSP Income (T4RSP)	
☐ Statement of Investment Income (T5)	
☐ Government Service Contract Payments (T1204)	
☐ Statement of Benefits (T5007)	
☐ Statement of Securities Transactions (T5008)	
☐ Statement of Partnership Income (T5013)	
☐ Statement of Contract Payments (T5018)	

ANNEX B

(A separate Annex B is required for each corporation whose information is sought)

Application made under section 7 of the *Family Orders and Agreements Enforcement Assistance Act* for an order authorizing a court official to request information for the establishment or variation of a support order:

The information requested is related to _____

*(Name of corporation and business number (if known)
whose information is sought)*

**that is controlled directly or indirectly within the meaning of subsection 256(5.1)
of the *Income Tax Act*, R.C.S. 1985, c.1 (5th supp.) by** _____

is sought)

(Name of person whose information

and is set out in in the following federal tax forms that can be found in federal information banks prescribed in section 3 of the *Release of Information for Family Orders and Agreements Enforcement Assistance Regulations*, SOR/2023-125.

- ☐ The information that is set out in the federal tax form(s) checked below is requested for the following taxation year(s) unless otherwise specified beside the specific form:

(Insert for which specific taxation year(s) the information is requested)

Federal Tax Form(s)	Year(s) requested <i>(if different than above)</i>
Basic income information	
☐ T2 – Corporation Income Tax Return	
☐ Schedule 1 – Net Income (loss) for Income Tax Purposes	
☐ Schedule 5 – Tax Calculations Supplementary – Corporations	
☐ Schedule 6 – Summary of Dispositions of Capital Property	
☐ Schedule 100 – Balance Sheet Information	
☐ Schedule 50 – Shareholder Information	
☐ Schedule 125 – Income Statement Information	